Best Interest Determination (BID): When is one needed?

McKinney-Vento school selection · City Schools McKinney-Vento Program · based on 42 U.S.C. § 11432(g)(3), COMAR 13A.05.09.04 and the MSDE BID FAQ

SAMPLE · DRAFT FOR REVIEW

Student identified as eligible for McKinney-Vento (liaison confirms)

↓

Q1. Does the student's temporary residence put them outside the attendance zone of their school of origin?

NO →

No BID needed: needs assessment & support

The school of origin is also the local school, so there's no school choice to make. Keep the student enrolled; assess needs (meals, uniforms, supplies, fees, health, academics) and refer as needed.

↓ **YES**

Q2. Which school does the parent / guardian or unaccompanied youth want?

Local school →

No formal BID: honor the choice

The presumption for the school of origin doesn't apply when it's contrary to the parent's or youth's request. Enroll in the local school **immediately**, even without records; explain the right to stay in the school of origin and document the informed choice; needs assessment & supports.

↓ **School of origin, or unsure**

Q3. Is the parent or youth unsure, or does the school system have concerns that the school of origin is not in the student's best interest?

NO →

No formal BID: presumption stands

Keep the student in the school of origin; arrange transportation; document the decision; needs assessment & supports.

↓ **YES**

Formal BID meeting (liaison leads)

Presume the school of origin is in the student's best interest and give priority to the parent's or youth's request. Consider student-centered factors:

- Impact of moving on achievement, education, health and safety
- Time left in the school year; age and grade; IEP / 504 / EL services
- Attendance, relationships, the student's wishes; travel time (not cost)

Decide →

Decision

- **Agree:** enroll in the chosen school; transportation to the school of origin if chosen; supports continue
- **School system decides against the parent's or youth's request: written explanation** and notice of the **right to appeal**. The student stays in the requested school, with transportation, while the dispute is resolved.

Revisit when...

- The family moves again
- The student moves up a school level (the feeder school counts as school of origin)
- The student becomes permanently housed: they may stay in the school of origin for the rest of that school year, no new BID needed

Every path: immediate enrollment, needs assessment, confidentiality, and documentation. Liaison line: 443-642-2424

Question · No formal BID: needs assessment & support · Formal BID

References for the BID flowchart

Each step on the flowchart and the source it comes from

SAMPLE · DRAFT FOR REVIEW

Law and regulation

1. **42 U.S.C. § 11432(g)(3)(A)–(B):** school of origin vs. local school; presumption for the school of origin unless contrary to the parent's or youth's request; student-centered factors; written explanation and right to appeal.
   uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title42-section11432&num=0&edition=prelim
2. **42 U.S.C. § 11432(g)(3)(A)(i)(II):** a student who becomes permanently housed may stay in the school of origin for the rest of the academic year. (Same link.)
3. **42 U.S.C. § 11432(g)(3)(C), (E):** immediate enrollment; enrollment in the requested school while a dispute is resolved. (Same link.)
4. **42 U.S.C. § 11432(g)(3)(I):** school of origin includes preschool and the designated receiving (feeder) school at the next grade level. (Same link.)
5. **42 U.S.C. § 11432(g)(1)(J)(iii):** transportation to and from the school of origin. (Same link.)
6. **COMAR 13A.05.09.04:** Maryland's school-placement rule for homeless students, including the steps the local school system follows for best interest.
   dsd.maryland.gov/regulations/Pages/13A.05.09.04.aspx

Maryland and national guidance

7. **MSDE, McKinney-Vento Best Interest Determinations FAQ:** when a BID is triggered, less formal vs. formal process, the LEA of origin's role, preschool, and when a formal meeting isn't needed.
   marylandpublicschools.org/about/Documents/DSFSS/Homeless/Best-Interest-Determination-FAQ-A.pdf
8. **MSDE, McKinney-Vento Fact Sheet.**
   marylandpublicschools.org/about/Documents/DSFSS/Homeless/McKinney-Vento-Factsheet-A.pdf
9. **NCHE, School Selection & Best Interest** and the brief *Understanding and Implementing School Selection and Best Interest Under the McKinney-Vento Act*: presumption, student-centered factors, written explanation; transportation cost is not a factor.
   nche.ed.gov/school-selection/ · nche.ed.gov/school-selection-and-best-interest-determination-brief/
10. **U.S. Department of Education, Education for Homeless Children and Youths Non-Regulatory Guidance (2017, updated 2018).**
    ed.gov (search "EHCY non-regulatory guidance")
11. **SchoolHouse Connection, Interview Checklists for Supporting School Selection** (best practice).
    schoolhouseconnection.org/interview-checklists-for-supporting-school-selection/
12. **NC Homeless Education Program, Considerations for Determining Best Interest** (best-practice factor checklist).
    hepnc.uncg.edu/wp-content/uploads/2025/08/Considerations-for-Determining-Best-Interest.pdf